

## 25STCV34806 25STCV34806

County: los-angeles

Division: Civil Law and Motion

Department: 510

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Case Number: 25STCV34806 Hearing Date: July 6, 2026 Dept: 510

No. 9 – Javier Alexander Mejia Sevilla v. Guardian International Solutions, et al.

Defendants Guardian International Solutions, Inc. and Super Center Concepts, Inc.'s Motion to Quash Service of Summonses

Defendants

Super Center Concepts, Inc. and Guardian International Solutions Inc. moves to

quash service of summons by Plaintiff Javier Alexander Mejia Sevilla. “[O]nce a

defendant files a motion to quash the burden is on the plaintiff to prove by a

preponderance of the evidence the validity of the service and the court’s

jurisdiction over the defendant.” (Bolkiah v. Superior Court (1999)

74 Cal.App.4th 984, 991.)

Plaintiff does not meet his burden to show

valid service. For a corporation, substituted service on the person to be

served may be done “by leaving a copy of the summons and complaint during usual

office hours in his or her office or, if no physical address is known, at his

or her usual mailing address... with the person who is apparently in charge

thereof, and by thereafter mailing a copy of the summons and complaint." (CCP § 415.20(a).)

Plaintiff's proof of service shows service via

mail to the registered agent of each Defendant. This service is improper. If

Plaintiff intended to serve the summons via substitute service, he should have

left a copy of the summons and complaint at the business's address "with the

person who is apparently in charge thereof" and subsequently mailed a copy to

the same address. If Plaintiff intended to personally serve Defendants, he

should have delivered the summons and complaint to the registered agent as

provided in CCP § 416.10(a).

Disposition

Defendants

Super Center Concepts, Inc. and Guardian International Solutions Inc.'s motion

to quash service of summons is granted. The Court hereby quashes

service of summons on Defendants Super Center Concepts, Inc. and Guardian

International Solutions Inc. as reflected in Plaintiff's proofs of service

filed on April 13, 2026. Plaintiff is afforded 60 days to effect proper service on the two defendants.